

II. WHERE THE INFANT IS ILLEGITIMATE.

Circumstances.	Person whose consent is required.
If the mother of the infant is alive -	The mother, or if she has by order of the court been deprived of the custody of the infant, the person to whom the custody of the infant has been committed by order of the court.
If the mother of the infant is dead.	The guardian appointed by the mother.

CHAPTER 46.

An Act to prevent unauthorised reproductions of dramatic and musical performances.

[31st July 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Penalties
for making,
&c. records
without
consent of
performers.

1. If any person knowingly—

- (a) makes any record, directly or indirectly, from or by means of the performance of any dramatic or musical work without the consent in writing of the performers; or
- (b) sells or lets for hire, or distributes for the purposes of trade, or by way of trade exposes or offers for sale or hire, any record made in contravention of this Act; or
- (c) uses for the purpose of a public performance any record made in contravention of this Act,

he shall be guilty of an offence under this Act, and shall be liable, on summary conviction, to a fine not exceeding forty shillings for each record in respect of which an offence is proved, but not exceeding fifty pounds in

respect of any one transaction: Provided that it shall be a defence to any proceedings in respect of an alleged offence under the foregoing paragraph (a) if the defendant proves that the record in respect of which the offence is alleged was not made for purposes of trade.

2. If any person makes, or has in his possession, any plate or similar contrivance for the purpose of making records in contravention of this Act, he shall be guilty of an offence under this Act, and shall be liable, on summary conviction, to a fine not exceeding fifty pounds for each plate or similar contrivance in respect of which an offence is proved.

Penalties for making or having plates, &c. for making records in contravention of Act.

3. The Court before which any proceedings are taken under this Act may, on conviction of the offender, order that all records or plates or similar contrivances in the possession of the offender which appear to the Court to have been made in contravention of this Act, or to be adapted for the making of records in contravention of this Act, and in respect of which the offender has been convicted, be destroyed, or otherwise dealt with as the Court may think fit.

Power to order destruction of records, &c. contravening Act.

4. In this Act, unless the context otherwise requires,—

Interpretation.

The expression "record" means any record or similar contrivance for reproducing sound;

The expression "performance of any dramatic or musical work" includes any performance, mechanical or otherwise, of any such work which performance is rendered or intended to be rendered audible by mechanical or electrical means;

The expression "performers" in the case of a mechanical performance means the persons whose performance is mechanically reproduced.

5.—(1) This Act may be cited as the Dramatic and Musical Performers' Protection Act, 1925.

Short title.

(2) This Act shall extend to Northern Ireland.